

EPO was that the examining division considered it expedient. Even if it were at all possible to argue in retrospect that the holding of oral proceedings was not "expedient", such argument would ignore the wording of Art. 116(1) EPC, which makes the decision to hold oral proceedings dependent on the subjective assessment of the division.

In T 1734/10 the board held that evaluating whether oral proceedings were indeed expedient was part of the examining division's discretion, which was to be exercised taking into account the progress made in the examination proceedings. For assessing expediency, the main consideration in the Guidelines was procedural economy and certainly not the condition of a complete lack of progress in the examination ("last resort situation").

In T 120/12 the board held that it was up to the examining division to decide, taking the circumstances of the case into account, whether or not it considered it to be expedient to summon the applicant to oral proceedings under R. 115(1) EPC. Neither the EPC nor the Guidelines required that reasons for this decision be given with the summons.

In T 446/09, in view of its decision not to remit the case to the first instance, the board considered it to be expedient to hold oral proceedings in order to bring the case to a conclusion, and therefore refused the appellant's request to cancel the oral proceedings.

In T 166/04 the board held that, in particular, clarity problems could be handled expediently during oral proceedings.

In T 1388/10 the board held that it was not expedient to hold oral proceedings where an applicant merely submitted that it considered a particular objection overcome without putting forward any arguments in support of its position.

3.2. Effects of withdrawal of a request for oral proceedings in case of oral proceedings at the instance of the EPO

The withdrawal by a party of its request for oral proceedings, with its further request for continuation of the proceedings in writing have no effect in a case where the oral proceedings are held at the instance of the EPO (T 556/07, T 1578/05).

4. Request for oral proceedings

A party's right to oral proceedings is subject to a clear and unambiguous request for such proceedings (T 352/89, T 663/90, T 1976/08, T 1500/13). The refusal of a request for oral proceedings normally constitutes a violation of the right to present comments. If the request for oral proceedings is ignored, even due to an oversight, the decision must be set aside as null and void (T 19/87, OJ 1988, 268; T 93/88; T 766/90; T 556/95, OJ 1997, 205; T 996/09; T 740/15; J 12/15; T 1951/16).

In T 1050/19 the board admitted a late-filed request for oral proceedings on the basis that it was an exercise of the right to be heard rather than an amendment to the appeal case within the meaning of Art. 13(1) RPBA 2020.

4.1. Doubt as to the nature of the request for oral proceedings

The question whether a request for oral proceedings has been made must be decided on the individual facts of each case. Whether a request in the legal sense has been made does not merely depend upon the actual use of the word "request" (T 283/88, T 263/91, T 1829/10). If there is the slightest doubt, clarification should be sought from the party concerned (see e.g. T 299/86, OJ 1988, 88; T 19/87, OJ 1988, 268; T 870/93; T 417/00; T 1829/10; T 2373/11; T 2557/12; T 1500/13).

If an EPO department has any doubt as to whether a party has requested oral proceedings (e.g. if the request is for a "hearing"), it must clarify the matter in order to avoid committing a substantial procedural violation (T 1829/10, T 2373/11, T 1972/13). As a request for an "interview" is different from a request for oral proceedings, the examining division can refuse such a request without seeking clarification (T 1606/07, T 1976/08).

Nevertheless, in T 528/96, the board explained that, although the opposition division might reasonably have been expected to query whether a request for oral proceedings was in fact intended, the fact that it failed to do so did not constitute a procedural violation, since the onus to make a clear request was on the party itself (see also T 26/07).

In T 2687/17 the board considered it irrelevant that the request for oral proceedings had "only" been made on Form 2300 and not repeated in the statement of grounds for opposition because there was no obligation to state the reasons for a request for oral proceedings.

4.2. Wording of request

4.2.1 Wording constituting a request

In T 19/87 (OJ 1988, 268) the board considered that the request for "an interview as a preliminary to oral proceedings" could only be construed as both a request for an interview (which might or might not be granted) and request for oral proceedings.

In T 668/89 the phrase "applicant's representative claims his right to appear and argue the case orally" was deemed to be a valid request for oral proceedings.

In T 494/90 the wording "We request that we be given the opportunity to attend an oral hearing which may be appointed" was accepted as request for oral proceedings in the circumstances of the case.

In the ex parte case T 95/04 the appellant's request for a telephone call from the examiner was followed by a further request "in any event" for an opportunity to be heard before an adverse decision was taken. In the board's view, the expression "in any event" implied that, if the examiner was to exercise his discretion and not to communicate further with the applicant, then the applicant wished to have a further opportunity to be heard which under the circumstances could only be provided by appointing oral proceedings.

In T.1829/10 the applicant's response to the examining division's first communication was that a hearing would be "expedient" (German: "sachdienlich") if basic concerns regarding patentability persisted. The board of appeal held that the term "hearing" was synonymous with "oral proceedings".

In T.2557/12 the examining division had considered that the following phrase did not constitute a request for oral proceedings: "In the case of the Examining division would decide to reject the application, an oral proceeding would be requested pursuant to article 116 EPC". The board held that the phrase in question left little doubt about the applicant's intention to avoid an immediate refusal of its application. It should be considered more likely as a request for oral proceedings than not.

4.2.2 Wording not constituting a request

In T.528/96, the final paragraph of the patentee's response to the opposition – the last document on the file before the opposition division took its decision – read as follows: "Should the opposition division feel that further information is required, the patentee will be pleased to respond in due course, either in writing or during the oral hearing". The statement did not constitute a formal request for oral proceedings.

In T.299/86 (OJ 1988, 88) a party "reserved the right to request oral proceedings". This was interpreted as meaning that the party had not yet decided whether to request oral proceedings. See also T.263/91.

In T.433/87 the board interpreted the patent proprietor's request "to conclude the opposition proceedings and if necessary arrange oral proceedings as soon as possible" to mean that oral proceedings were requested only in the event of their being considered necessary by the opposition division. See also T.650/94.

The statement "if there are any outstanding problems, the writer would welcome an opportunity to discuss the case with the examiner" could not be understood as a valid request for oral proceedings either (T.88/87). See also T.454/93, T.1606/07, T.1500/13.

In T.60/13 the board did not consider the respondent's statement that "if an oral hearing was to take place we wish to attend" to constitute a request for oral proceedings. Furthermore, the indication regarding the language used in "possible oral proceedings" and the request to use Swedish in oral proceedings, after the statement that "we find it unnecessary to attend an oral proceeding" were not seen to constitute a clear request for oral proceedings.

In T.1310/17 the board found that a party announcing that it would not be attending oral proceedings and at the same time requesting that they be postponed if they could not be held online was not to be treated as an independent request for oral proceedings. Instead, the party was merely commenting on the modalities of the oral proceedings scheduled (at the opposing party's request), should such a hearing take place. A conditional request for postponement made for the mere eventuality that the hearing might be held online was thus to no avail.

4.3. Withdrawal of request for oral proceedings

4.3.1 Withdrawal only by virtue of a clearly expressed intention not to proceed with the request

A party's request for oral proceedings can be withdrawn only by virtue of a clearly expressed intention not to proceed with the request, for example in the form of an unambiguous written statement to that effect on the file (T 1548/11). Silence on the part of a party cannot be interpreted as withdrawal of the request for oral proceedings (T 766/90, T 35/92, T 686/92, J 12/15, T 1951/16). A withdrawal of the request for oral proceedings requires an unambiguous expression of the party's wish to withdraw (T 795/91, T 879/92, T 2687/17). If there is no unequivocal proof of the withdrawal of the request, it has to be assumed that the request, once submitted, remains valid and was therefore also valid at the time of the contested decision (see T 283/88, T 598/88, T 663/90, T 1951/16).

A considerable number of decisions treat the announcement of non-attendance of the oral proceedings (see below in this chapter III.C.4.3.2) and the lack of statement of grounds of appeal followed by lack of response to a notification of the inadmissibility of the appeal (see below in this chapter III.C.4.3.3) as equivalent to a withdrawal of the request. For the question of whether a withdrawal of a request for oral proceedings can lead to a different apportionment of costs under Art. 104 EPC, see chapter III.R.2.2. "Acts or omissions prejudicing the timely and efficient conduct of oral proceedings".

4.3.2 Announcing non-attendance

Where oral proceedings are scheduled upon a party's request and that party subsequently expresses its intention not to attend, such statement is generally interpreted as a withdrawal of the request for oral proceedings.

In T 3/90 (OJ 1992, 737) oral proceedings were appointed as a result of a party's request. The party subsequently stated that it would not be represented at the oral proceedings. The board held that such a statement should normally be treated as equivalent to a withdrawal of the request for oral proceedings (see also T 696/02, T 1027/03, T 1482/05, T 871/07, T 1229/12, T 2188/12, T 320/16, T 517/17, T 849/18). By stating that it will not attend oral proceedings and by requesting a decision on the record, a party unequivocally expresses that it is interested in an immediate decision on the file as stood and that it does not wish to present his arguments orally in the requested oral proceedings (T 1482/05). As a consequence, the decision can be handed down in writing without holding oral proceedings (Art. 12(8) RPBA 2020). See T 320/16 and T 502/16.

In T 910/02 the board remitted the case to the department of first instance for further prosecution without oral proceedings, since all the parties who had presented their comments in the appeal proceedings had either withdrawn their request for oral proceedings or had stated that they would not attend oral proceedings. In such a case the board has discretion either to abide by the date for the oral proceedings in order to announce a decision, or to cancel the oral proceedings and issue a decision based on written proceedings. T 663/10 confirmed T 910/02, adding that the board was not obliged

to hold oral proceedings in the absence of the party, even if the appellant had explicitly maintained its request for oral proceedings. In T 671/12 the board followed these decisions and held that it could not be the purpose of Art. 116 EPC that a party could oblige a board to hold oral proceedings in its absence. See also T 166/17.

4.3.3 Appeal inadmissible

In the absence of anything that can be regarded as a statement of grounds of appeal, the lack of any substantive response to a notification of the inadmissibility of the appeal is considered as equivalent to an abandonment of a request for oral proceedings initially made in the notice of appeal (see inter alia T 1042/07, T 234/10, T 179/11, T 2162/14, T 95/17, T 1293/18, T 362/18, T 1321/18, T 278/21). Holding oral proceedings would have served no other purpose than confirming the (undisputed) preliminary finding that no statement of grounds of appeal had been filed (T 2377/19).

In T 1573/20 the board considered that this situation was comparable to the "clearly inadmissible appeals" considered in decisions G 1/97 (OJ 2000, 322) and G 2/19 (OJ 2020, A87). These decisions were concerned with appeals by a non-party or based on non-existing remedies only. The board was convinced that the Enlarged Board did not consider these examples to be exhaustive. Rather, it acknowledged as a matter of principle that there are exceptions to the right to oral proceedings under Art. 116 EPC (see also T 2377/19).

4.3.4 Explicit withdrawal of request for oral proceedings – reimbursement of appeal fee

Under R. 103(4)(c) EPC, 25% of the appeal fee is reimbursed if any request for oral proceedings is withdrawn within one month of notification of the communication issued by the board in preparation for the oral proceedings, and no oral proceedings take place.

In T 517/17 the appellant's indication that it would not attend oral proceedings was taken as an implicit withdrawal of its request for oral proceedings for the purposes of R. 103(4)(c) EPC (see also T 202/18). Another interpretation is that R. 103(4)(c) applies only if the party **explicitly** withdraws its request for oral proceedings (T 73/17, T 191/17 and T 2698/17). For further information, see chapter V.A.11.12 "Partial reimbursement (25%) under Rule 103(4) EPC".

4.4. Further oral proceedings before the same department

According to Art. 116(1), second sentence, EPC the EPO may reject a request for further oral proceedings before the same department where the parties and the subject of the proceedings are the same.

4.4.1 Same subject of proceedings

According to the case law of the boards of appeal, the subject of the proceedings is the same if no substantially new situation has arisen after the first oral proceedings that could